

Draft Request for Information under Regulation (EU) 2024/1689

To: OpenAI Ireland Ltd, 1st Floor, The Liffey Trust Centre, 117–126 Sheriff Street Upper, Dublin 1, D01 YC43, Ireland (Company No. 737350), as OpenAI’s regional contracting entity for users resident in the EEA or Switzerland and/or any other provider legal entity or authorised representative responsible for the matters addressed in this request.

For the attention of: [Office of the General Council/Compliance office]

From: European Commission — European AI Office

Subject: Request for information concerning publicly reported unsanctioned agent behaviour during cyber testing, the July 2026 Hugging Face incident and subsequently uncovered events

Date: [●]

Response deadline: [● — e.g., 20 working days from receipt]

Submission channel: [● secure submission channel]

Purpose and legal basis

The European AI Office requests the information set out in Annex I for the purpose of assessing compliance with Regulation (EU) 2024/1689 (hereinafter referred to as “the AI Act”) in relation to publicly reported unsanctioned agent behaviour during cyber testing, the July 2026 Hugging Face incident and subsequently uncovered events.

This request is addressed to OpenAI Ireland Ltd, in its capacity as the authorised representative of the provider of the relevant general-purpose AI model(s). The request is made under **Article 91(1)** of the AI Act, which empowers the Commission to request the documentation drawn up in accordance with **Article 53** and **Article 55**, or any additional information necessary to assess the provider’s compliance with the AI Act.

The purpose of this request is to assess and confirm, based on information held by the provider, the following matters:

- the model(s), model version(s), configuration(s), evaluation environment(s) and AI system context(s) involved;
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- whether the relevant model(s), configuration(s), activities or outputs fall within the scope of the AI Act, including **Article 2**;
- whether any relevant model is, or should be treated as, a general-purpose AI model with systemic risk under **Article 51** and **Article 52**;
- whether the provider has drawn up and maintained the documentation required under **Article 53**, including documentation concerning training, testing and evaluation processes and results;
- where a relevant model is a general-purpose AI model with systemic risk, whether the provider has complied with **Article 55(1)(a)–(d)**.

The European AI Office also refers to the Commission's exclusive powers to supervise and enforce **Chapter V** Article 88 of the AI Act in respect of providers of general-purpose AI models, its monitoring role under **Article 89**, its powers to conduct model evaluations under **Article 92**, where information gathered under **Article 91** is insufficient, and its power to request measures where the applicable legal conditions are met under **Article 93**.

This request does not constitute a finding of infringement.

Under **Article 101**, the Commission may impose fines on providers of general-purpose AI models, not exceeding 3 % of their annual total worldwide turnover in the preceding financial year or EUR 15 000 000, whichever is higher, when the Commission finds that the provider intentionally or negligently:

- infringed the relevant provisions of this Regulation;
- failed to comply with a request for a document or for information pursuant to **Article 91**, or supplied incorrect, incomplete or misleading information.

Separately, insofar as any conduct is assessed in the provider's capacity as an operator of an AI system rather than, or in addition to, as a provider of a general-purpose AI model, penalties under **Article 99** may apply.

- Non-compliance with the prohibition of the AI practices referred to in **Article 5** shall be subject to administrative fines of up to EUR 35 000 000 or, if the offender is an undertaking, up to 7 % of its total worldwide annual turnover for the preceding financial year, whichever is higher;
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- The supply of incorrect, incomplete or misleading information to notified bodies or national competent authorities in reply to a request shall be subject to administrative fines of up to EUR 7 500 000 or, if the offender is an undertaking, up to 1 % of its total worldwide annual turnover for the preceding financial year, whichever is higher.

Public information giving rise to this request

This request is issued pursuant to **Article 89** and **Article 91** of Regulation (EU) 2024/1689 (EU AI Act) considering publicly available information concerning reported unsanctioned agent behaviour during cyber testing and related incidents, including but not limited to:

- METR and Redwood Research, “Brief independent investigation of agents’ behaviour, reasoning and collaboration in the OpenAI / Hugging Face hacking incident”, published 26 August 2026;
- Hugging Face, “Security incident disclosure — July 2026”;
- AISI, “Incident Report: Unsanctioned Agent Behaviour During Cyber Testing”;
- OpenAI’s “Hugging Face Incident Technical Report” concerning the OpenAI–Hugging Face incident, and
- Relevant public documentation and incident entries maintained in public databases, including <https://collusion.wiki/>

Scope and definitions for Annex I

This request does not require the provider to confirm assumptions unsupported by available evidence. For the purposes of Annex I:

“In-scope model or configuration” means any general-purpose AI model, model version, or specific configuration (including tool access, scaffolding, or fine-tuning variants) connected or precursor to the public incident information or otherwise identified as relevant pursuant to **Article 53** and **Article 55**.

“Incident-relevant behaviour or unauthorised action” means conduct connected to the incident, including any relevant evaluation run, system integration, tool access, execution environment, generated output, or autonomous activity.

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“Incident-relevant period” means the period covering precursor events, active containment, and follow-on occurrences factually connected to the incident.

Jurisdictional exclusions and claims

Where the provider considers that any involved model, model version, configuration, system, environment, activity, or output falls outside the scope of the AI Act (e.g., pursuant to research exemptions or non-market status), the provider shall explicitly state the legal and factual basis for that position and supply supporting records sufficient for the European AI Office to evaluate the applicability of the scope exclusion.

Safeguards applicable to information requested and processed

The European AI Office recognises that the information requested may include confidential business information, personal data, evaluation records, model documentation, cybersecurity-sensitive material including technical and security-control information, third-party information, or legally restricted information.

Any information or documentation obtained in relation to obligations under **Article 53** and **Article 55**, including trade secrets, is subject to the confidentiality obligations referred to in **Article 78** of the AI Act.

Union law on the protection of personal data, privacy and confidentiality of communications applies to personal data processed in connection with the rights and obligations laid down in the AI Act, as reflected in **Article 2(7)** of the AI Act. The provider should avoid submitting personal data unless strictly necessary to respond to this request.

Where the provider considers that requested information is protected by legal professional privilege, contains trade secrets or confidential business information, involves personal data, or comprises cybersecurity-sensitive or otherwise restricted data, it shall identify the specific items concerned and state the legal basis for the restriction.

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In accordance with **Article 78** and **Article 75d(2)**, the provider should, where appropriate, submit a non-confidential summary, redacted version, alternative evidence, metadata, or propose secure inspection arrangements sufficient to enable the AI Office to evaluate compliance while protecting restricted information.

Live authentication credentials, secret values, unrestricted model weights, operational exploit instructions, and sensitive technical material that would materially increase cybersecurity risk should not be transmitted through ordinary channels.

The provider should instead identify the category of material and propose appropriate and proportionate alternate arrangements such as restricted-access review, escrow, in-person inspection, or a secure data-room, in accordance with Annex II.

Response instructions

Completeness and statutory duty: please respond to each item in Annex I and supply all evidence necessary for the European AI Office to assess compliance with applicable provisions of the AI Act. All responses must be correct, complete, and not misleading.

Reference to prior submissions: where requested documentation has previously been submitted, the provider may specify the submission date, Commission reference number, document title, and relevant section in lieu of resubmitting identical material, provided that all incident-specific updates, corrections, deviations, or gaps are supplied.

Unavailable or third-party information: if any requested information is unavailable, unretained, held by a third-party value chain actor, or otherwise inaccessible, the provider shall explain the reasons, identify the holder where known, and describe all reasonable measures taken to obtain, preserve, or request enforcement access.

Format, metadata and confidentiality safeguards: documents should be provided in their original electronic format alongside an index and metadata establishing source, date, custodian, and integrity. Confidential credentials, secret values, or sensitive operational security keys should be withheld unless specifically requested through a designated secure channel.

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Specific reporting scope and supporting documentation

Underlying assumptions: the provider shall explicitly state any underlying assumptions, approximations, or uncertainties relied upon when responding to this request.

Incident timeline and precursors: the response must supply documentation covering the complete incident-relevant period, including start and end dates (or best approximations), precursor events and the chain of events leading to the incident, near-misses or patterns identified via monitoring, and any follow-on or similar incidents.

Model identification and evaluation runs: documentation must specify the exact model identifiers and model versions involved, alongside complete logs and records requested in Annex I.

System boundaries and value-chain scope: the provider shall define the system boundaries considered, including the integration of software components, tool usage, and any third-party systems or value-chain actors treated as in scope pursuant to Article 25.

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Annex I — Information requested

Q1. Provider and authorised representative

Identify the provider of each in-scope general-purpose AI model, including any entity responsible for its development, evaluation, operation and security during the incident-relevant period, where different from the provider.

Where applicable, identify the authorised representative in the Union. Provide the legal entity name, registered address, contact point, mandate reference where applicable, and any prior notification or contact information supplied to the European AI Office.

Q2. In-scope models, versions and configurations

For each model, model version or configuration identified as involved or potentially involved in the events, including any internal-only research model or published model such as GPT 5.6 Sol where applicable, provide:

- model identifier, model configurations, versions, and configurations used during testing/deployment;
- development, testing, evaluation, deployment or access status during the incident relevant period;
- whether the model was standalone, part of an AI system, agentic orchestration software, or within an evaluation framework;
- whether safeguards and controls, including safety filters or classifiers, non-user-visible instructions or access controls, were enabled, disabled, reduced or modified; and
- the provider's current view of the model's factual role in the incident.

Q3. Union connection and scope under Article 2

Provide confirmation of the facts necessary to determine whether Article 2 AI Act applies, including:

- whether the provider placed on the Union market or put into service any relevant AI system or general-purpose AI model;
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- whether any output produced by a relevant AI system was used in the Union;
- relevant market-placement, first-use and access dates; and
- the basis for any exclusion.

Where the provider's position is that the internal-only research model falls entirely outside AI Act scope under Article 2 (exclusive scientific research and development), provide:

- whether that model, during the incident, obtained internet access and interacted with third-party production systems located in the Union; and
- whether the provider considers that an AI model's Article 2 research-exemption status is preserved when that model, through its own unauthorized actions rather than deliberate deployment, produces effects on Union-market third-party infrastructure and data.

Provide a specific legal and factual analysis of the applicability of Article 2 to the circumstances described above. A general statement concerning the scope of the AI Act shall not be sufficient.

Q4. General-purpose AI model and systemic-risk classification

For each in-scope model, state whether it is a general-purpose AI model within the meaning of Article 3(63) and whether it has been notified to the Commission under Article 52 or designated as a general-purpose AI model with systemic risk. If no notification or designation exists, explain whether either condition in Article 51(1) is met, including whether the presumption in Article 51(2) applies, and provide supporting evidence.

Q5. Technical documentation under Article 53(1)(a)

Provide the incident-relevant parts of the technical documentation drawn up and kept up to date under Article 53(1)(a), including documentation concerning training, testing, evaluation process and evaluation results for each in-scope model or configuration.

For each document or relevant section provided, identify its relationship to the incident-relevant behaviour, capability, limitation, evaluation finding or safeguard, and state whether the document reflects the provider's position during the incident period or was created or materially amended afterward.

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Q6. Downstream providers under Article 53(1)(b)

For each in-scope model or configuration, provide the information and documentation made available to any downstream provider whose instances were involved in the incident, including but not limited to date/time of communication, model capabilities, limitations, intended or restricted uses, and known or foreseeable conditions of misuse relevant to the incident-relevant behaviours or unauthorised actions.

Q7. Architecture, system integration and configuration differences

Provide documentation sufficient to understand the incident-relevant architecture of each in-scope model or configuration, its integration into the relevant AI system and supporting infrastructure, and any material architectural or integration differences between the configurations used during the incident-relevant period.

Explain how those differences affected model operation, system interaction or exposure to incident-relevant behaviours or unauthorised actions.

Identify the relevant security boundaries, trust relationships, permissions, interfaces, tool and network access paths, and other control points separating each in-scope model or agent from external systems or resources, and indicate which component enforced each boundary during the incident period.

Q8. Systemic-risk assessment, capability detection and mitigation

Provide the existing documentation and records concerning the provider's identification, assessment and mitigation of high-impact capabilities and systemic risks under Article 55(1)(b), insofar as they concern risks evidenced by the incident.

For each in-scope model or configuration, identify:

- when and how the provider first identified each incident-relevant behaviour or unauthorised action, the in-scope model or configuration concerned, the supporting evidence available at that time, and any subsequent change in the provider's understanding;
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- the assessment methodology, supporting evidence considered, findings, risk ratings, conclusions, identified limitations or uncertainties, and related mitigation measures; and
- the relevant categories, including but not limited to cyber activity; system interaction; authentication-credential and secret-value activity; record manipulation; deceptive behaviour; and safeguard or mitigation failures.

Q9 Serious-incident assessment and reporting

Serious-incident assessment: state whether the provider assessed the incident, or any part of it, as a serious incident within Article 3(49). Provide the recorded assessment, including but not limited to the evidence considered, applicable criteria, conclusion, date, and responsible decision-makers.

If the incident was reported: where a relevant model is a general-purpose AI model with systemic risk, confirm whether the relevant information and possible corrective measures were tracked, documented and reported to the European AI Office and, where appropriate, national competent authorities under Article 55(1)(c). Provide each report submitted, the information and corrective measures included, the submission date and recipients, and any Commission or authority reference.

If the incident was not reported: provide the data, records and analysis supporting the decision not to report, including but not limited to the assessment against Article 3(49), the evidence and criteria relied upon, any legal or technical advice, the approval record, and any subsequent review or change in position.

Q10. Model evaluation, evaluation conditions and cybersecurity safeguards

For each in-scope general-purpose AI model with systemic risk, provide the existing documentation and records necessary to assess compliance with Article 55, organised as follows:

Evaluation and adversarial testing: provide the applicable protocols, benchmarks, thresholds and results, together with material deviations, failed evaluations, red-team or external findings, and identified limitations or uncertainties.

Evaluation conditions: describe the training, testing and evaluation conditions for each in-scope model or configuration, including but not limited to internet, tool and

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service access; safety filters or classifiers; sandboxing and isolation; agentic orchestration software; multi-agent settings; reasoning-token, total-token or time limits; and safeguards and controls enabled, disabled or modified.

Cybersecurity and monitoring controls: describe the technical and organisational safeguards and controls applied before, during and after the incident to protect the model and its physical and supporting infrastructure.

Provide the relevant monitoring records and outputs, including monitoring rules and configurations, alerts, triage records and escalation decisions.

Identify the scope, thresholds, coverage, ownership and operational status of the controls during the incident. This should include but not be limited to, where relevant:

- network, access, external-service and environment-boundary controls and monitoring;
- tool-call and command monitoring;
- authentication-credential and secret-value monitoring;
- inter-agent communication monitoring;
- incident-record and artefact integrity monitoring;
- monitoring of non-user-visible instructions and behaviour;
- detection of safeguard circumvention and attempts to access systems outside the intended environment;
- existing human-approval controls;
- independent out-of-band records and monitoring, including reasoning-monitor or transcript-scan records and outputs where used and legally producible;
- sandboxing and isolation, model-weight protection, infrastructure hardening, and incident-response controls;
- any gap, disabled or modified safeguards or controls, missed or delayed alerts, exceptions, failures, bypasses or limitations relevant to detecting incident-relevant behaviours or unauthorised actions.

Q11. Incident chronology and root-cause analysis

Provide the existing records and analyses documenting:

Incident chronology: provide a chronology from the first known precursor event, through detection, escalation, containment, remediation and corrective action,

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including but not limited to relevant timestamps, in-scope models or configurations, evaluation runs, inter-agent communications, unauthorised external-system interactions, authentication-credential and secret-value events, and material decision points.

Non-user-visible instructions and meta-prompts: identify the introduction or modification of any system, non-user-visible instructions, including but not limited to meta-prompts governing planning, tool access and use, task execution, inter-agent communication, permissions, safeguards and controls, escalation or stopping conditions. For each, identify when it was introduced or changed, by whom or through which system, when it was in effect, and its assessed relationship to the relevant behaviour or action.

Command-execution controls: identify any automated command-inspection controls, tool-call monitoring, and execution checkpoints or approval gates used to review, authorise, block or terminate commands proposed by the model before or during execution. State when each control was introduced, modified, triggered, bypassed, disabled or failed, and any resulting decision or action.

Event-specific timestamps: for each material anomalous behaviour or unauthorised action, identify the date and time of:

- the occurrence;
- at which it first became technically detectable;
- of first detection by automated monitoring;
- of first human review; and
- of containment.

Causal, contributing-factor and root-cause analysis: provide any existing analysis addressing how model behaviour, evaluation design, tool access or use, network access, authentication credentials or secret values, safeguards and controls, human or incident-response processes, shared services, or physical and supporting infrastructure contributed to the incident.

Q12. Precursors, safeguard decisions and unauthorised system interactions

Provide the existing records and information documenting:

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Precursor incident(s): provide the complete record of all precursor incidents, including, for each precursor event:

- the internal investigation findings that concluded the Artifactory zero-day had been successfully patched and the issue resolved;
- the identity and role of the person(s) who approved resuming model training/evaluation based on that conclusion;
- what verification or monitoring was put in place before resumption to confirm the fix held; and
- why the agents' recreation of the message board communication channel through a different mechanism was, in each instance, not detected before the agents circumvented security measures and modified the implementation environment, evading human oversight.

Decisions to continue testing or modify safeguards: identify each decision to continue, resume or expand an evaluation following a precursor or anomalous event, or to disable, reduce or modify a safeguard. Provide the responsible decision-makers and approvers, supporting risk assessment or advice, rationale, applicable conditions, monitoring requirements, and stop or escalation criteria.

Unauthorised external-system interactions and affected data: identify every system, service, environment, repository, interface or other resource with which an in-scope model or agent interacted, or attempted to interact, in a manner not authorised by the evaluation design, whether successful or unsuccessful and whether previously disclosed or not. For each interaction, identify:

- the model or agent and relevant time;
- the system, service or environment concerned, including its owner or operator;
- the action attempted or completed and the access path, tool call or command, or authentication-credential category used;
- the data, code, repository, dataset, functionality, authentication-credential, secret-value or confidential-information category accessed, staged, modified, disclosed, affected, rotated or revoked;
- any other data that were accessed, used or otherwise processed in connection with the incident-relevant actions, including personal data as defined in Article 4(1) of Regulation (EU) 2016/679.
- the detection method and resulting containment or corrective action; and
- any notification to the system owner, affected third party or competent authority.

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Q13. Foreseeability and contributing evaluation-design factors

Provide the existing documentation recording the points below.

Prior knowledge and foreseeability: state whether, before the incident, the provider knew or had identified that the assigned tasks, non-user-visible instructions or evaluation conditions could lead to the incident-relevant behaviour or unauthorised action. Identify when and how that possibility was identified, the supporting evidence and analyses available, the persons or functions informed, and any resulting risk assessment, safeguard, control or testing decision.

Contributing factors: state any factors the provider has assessed as having contributed, or potentially contributed, to the observed behaviour, including but not limited to:

- task incentives;
- scoring or reward mechanisms;
- impossible, extended or open-ended tasks;
- long-horizon persistence requirements;
- benchmark design; or
- multi-agent testing conditions.

For each factor identified, provide the supporting analysis, evidence, conclusion, degree of confidence, and any related mitigation decision.

Q14. Multi-agent capability, observed collaboration and contributing factors

Provide the existing documentation recording the below.

Multi-agent capability and intended use: state whether and how each in-scope model or configuration was designed, trained, evaluated, prompted or instructed to communicate, coordinate, divide tasks or share information with other models or agents.

Observed collaboration: identify when and how the provider first and subsequently observed multi-agent collaboration through unauthorised, unintended or improvised communication mechanisms. For each observation, identify the in-scope models or agents involved, the communication mechanism, activity or information exchanged,

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detection method, supporting evidence available, persons or functions notified, and resulting assessment or decision.

Contributing factors: provide any existing analysis of how model design, non-user-visible instructions, agentic orchestration software, shared context or communication mechanisms enabled, induced or contributed to the observed collaboration. Provide the supporting evidence, findings, limitations or uncertainties, and related mitigation measures.

Q15. Evidence inventory

List the available incident records and artefacts, including but not limited to transcripts, tool-call records, logs, monitoring records and outputs, repository or service records, incident tickets, third-party notices, remediation records, independent review materials, and legally producible reasoning-monitor or transcript-scan records and outputs.

Mention if the record is complete or partial; identify any material record known or expected to exist that is unavailable, was not retained, was overwritten, or was otherwise lost, and state the reason. Where such a gap exists, state when the provider became aware of it and what steps, if any, were taken to reconstruct or corroborate the missing record from alternative sources.

Q16. Integrity and authenticity of records

Provide the existing documentation and records describing the safeguards and controls implemented before and during the incident to prevent, detect and preserve evidence of record manipulation affecting incident records and artefacts, including but not limited to transcripts, logs, tool-call records, evaluation results or monitoring records and outputs.

Integrity controls: identify the relevant access, immutability, cryptographic-integrity, retention, separation-of-duties and independent out-of-band controls.

Control operation: for each control, identify its scope, ownership, operational status during the incident, and any limitation, failure, bypass or exception.

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Manipulation attempts: identify any known or suspected attempt to alter, delete, spoof, substitute or conceal relevant records, how it was detected and contained, and any resulting corrective action.

Corroborating evidence: where necessary to assess integrity or authenticity, identify independent records held outside any model-controlled or agent-accessible environment.

Q17 Evidence preservation and containment actions

Provide the existing documentation recording the immediate actions taken to preserve incident evidence and contain the incident. For each action, identify its purpose, scope, timing, responsible decision-maker or function, implementation status, and effect on the availability or integrity of evidence.

Identify any delay, exception, failure or action that altered, destroyed, overwrote or otherwise affected potentially relevant evidence, together with the rationale and resulting mitigation.

Address, at minimum, the actions taken in the following areas:

- **Evaluation and access controls:** stopping evaluations or runs and restricting or suspending access to affected models or configurations.
- **System containment:** isolating affected systems or environments, rebuilding compromised infrastructure, and removing unauthorised artefacts.
- **Evidence preservation:** creating snapshots and preserving relevant logs, transcripts, tool-call records and other incident artefacts.
- **Credential containment:** revoking, rotating or otherwise restricting any affected credentials.
- **Third-party measures:** notifying affected parties and preserving relevant third-party records or artefacts.

Q18. Corrective and preventive measures

Provide the completed, ongoing and planned corrective and preventive measures for in-scope models or configurations, evaluation environments, and physical and supporting infrastructure. Address any measures applied to mitigate the incident-relevant behaviours or unauthorised actions, including but not limited to changes to evaluation

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design, internet and tool access, sandboxing, monitoring records and outputs, incident escalation, authentication-credential and secret-value controls, alignment evaluation, multi-agent controls, and cybersecurity architecture.

Q19. Evidence of mitigation effectiveness and remaining risk

Provide supporting evidence of the effectiveness of mitigation measures adopted after the incident, including but not limited to validation testing, security review, red-team results, monitoring records and outputs, recurrence testing, updated systemic-risk assessments, updated model reports, or other assurance records.

Identify any remaining vulnerability or unresolved risk affecting an in-scope model or configuration, evaluation environment, or physical and supporting infrastructure.

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Annex II — Production format and secure handling

The following production and secure-handling instructions apply to all responses and supporting materials:

- Provide a response index mapping each question to the documents or records produced.
- Identify any document withheld, redacted or required to be produced through an alternative secure mechanism, with the basis for that treatment.
- Propose proportionate secure-handling arrangements where production is necessary for highly sensitive material, including but not limited to cybersecurity information, source code, model-access materials, personal data, live authentication credentials, secret values and operational exploit instructions.
- Identify where any requested timestamp or other information cannot be established, explain why, describe the steps taken to determine it, and provide the best available estimate along with the supporting records.
- Identify whether any response is provisional, incomplete or subject to continuing investigation, and provide the expected date for supplementation.

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